Westerly Thermostats: Terms and Conditions of Sale

Revised January 2024

1. Orders. All orders are subject to acceptance.

2. Prices. Prices are those in effect on the date of shipment.

3. Payment. Net 30 days from invoice.

4. Title and risk. Pass on delivery to the carrier.

5. Claims. Shortages must be reported within 5 days.

6. Returns. No returns without authorization; a 20% restocking fee applies except as provided in section 9.

7. Warranty. As published.

8. Limitation of liability. As permitted by law.

9. Distributor program (2024). Annual rebate on net purchases at the rate of the highest tier reached, applied to all purchases: $2,500,000+: 1.50%. Stock rotation: up to 5% of the prior year's purchases may be returned without the restocking fee in section 6. Orders of $1,000 or more are shipped freight prepaid.

10. Entire agreement. These terms supersede any prior terms.